FULL TEXT OF MEASURE A

RESOLUTION OF THE BOARD OF SUPERVISORS AMENDING RESOLUTION NO. 26-024 PROPOSING AMENDMENTS TO THE CHARTER OF THE COUNTY OF SAN DIEGO ENTITLED, "A TRANSPARENT, ACCOUNTABLE, MODERN COUNTY GOVERNMENT"

IT IS RESOLVED AND ORDERED by the Board of Supervisors of the County of San Diego that Resolution No. 26-024, adopted on April 21, 2026, be amended to read in its entirety as follows:

IT IS RESOLVED AND ORDERED by the Board of Supervisors of the County of San Diego pursuant to California Constitution, Art. XI, sections 3(a) and 3(b) and Articles 2 and 3 (commencing at section 23720) of Chapter 5, Division 1, Title 3 of the Government Code, that the Charter of the County of San Diego (San Diego County Charter) be amended as set forth herein, and that the proposed amendments be submitted to the eligible registered voters in San Diego County for approval or rejection at a special election to be consolidated with the statewide general election to be held on November 3, 2026 in San Diego County, State of California.

IT IS PROPOSED by the Board of Supervisors that the San Diego County Charter be amended and restated as follows:

SAN DIEGO COUNTY CHARTER
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CHARTER

SAN DIEGO COUNTY STATE OF CALIFORNIA

PREAMBLE

We, the People of the County of San Diego, adopt this Charter to protect our rights and to promote a just, honorable, and efficient government.

ARTICLE I
DEFINITIONS

Section 100: General Law. General Law means the Constitution, Statutes, and Codes of the State of California.

Section 101: State. State means the State of California.

Section 102: County. County means the County of San Diego.

Section 103: Board. Board means the Board of Supervisors of the County of San Diego.

Section 104: Officers. Officers include elective and appointive County officers as specifically designated by ~~general law~~General Law, by this Charter, or by ordinance of the Board.

Section 105: Employees. Employees include deputies and all other persons whose personal services are engaged for compensation by the County, except ~~officers~~Officers and independent contractors.

Section 106: Departments. Departments includes County agencies, departments, offices, institutions, boards, commissions, committees, and all other branches and divisions of County administration.

Section 107: Elective Office. Elective Office means any of the following offices:
(a) County Supervisor;
(b) District Attorney;
(c) Sheriff;
(d) Assessor, Recorder, and County Clerk;
(e) Treasurer and Tax Collector;
(f) Member of the County Board of Education.

Section 108: Appointive Officers. Appointive Officers shall be those identified in this Charter or by ordinance and all other Officers required by General Law.

ARTICLE II
INITIATIVE, REFERENDUM, AND RECALL

Section 200: Initiative, Referendum, and Recall. The people of the County may exercise the initiative, referendum, and recall provisions of ~~general law~~General Law.

ARTICLE III
COUNTY POWERS

Section 300: County Powers. As a political subdivision of the State, the County has all the powers specifically stated and necessarily implied in ~~general law~~General Law and this Charter, including the power to assess, levy, and collect taxes.

Section 301: County Authority. The County may exercise its powers only through a five-member Board of Supervisors or through persons authorized by ~~general law~~General Law, this Charter, County ordinance, or by resolution, policy or order approved by the Board.

ARTICLE IV
BOARD OF SUPERVISORS

Section 400: Number and Apportionment of Districts. For the purpose of electing Supervisors, the County is divided into five legally apportioned districts.

Section 400.1: Redistricting Commission. After each federal decennial census, the supervisorial districts of the County shall be reapportioned in the manner specified by ~~general law~~General Law by a redistricting commission established pursuant to the California Elections code. The supervisorial district boundaries shall be drawn in such a way that the area of at least three districts shall include unincorporated territory with two of the districts having geographic area that is predominantly outside of the incorporated cities as population will permit.

Section 400.5: Reserved. ~~For purposes of this Article, "elective office" means any of the following offices:~~
~~(1) County supervisor;~~
~~(2) District Attorney;~~
~~(3) Sheriff;~~
~~(4) Assessor, recorder, and county clerk;~~
~~(5) Treasurer and tax collector;~~
~~(6) Member of the County Board of Education.~~

Section 401: Election and Appointment of Supervisors. The voters in each of the County's five districts nominate and elect one Supervisor from their district to serve on the Board for a four-year term, beginning at noon on the first Monday after January first following election, and to hold office until the qualification of a successor.

Section 401.1: Elections of Supervisors occur every two years: Supervisors for the first, second, and third districts are elected at one general election; Supervisors for the fourth and fifth districts are elected at the alternate general election.

Section 401.2: A candidate for election or appointment as Supervisor shall fulfill residency and elector requirements established by ~~general law~~General Law.

Section 401.3: When there are more than two candidates that qualify to participate in the primary election for one ~~elective office~~Elective Office, including write-in candidates, the two candidates who receive the highest number of votes in the primary are the candidates in the general election, and the one who receives the higher number of votes in the general election is elected. In the event there are two or fewer candidates who qualify to participate in the primary election for one ~~elective office~~Elective Office, including write-in candidates, the office shall be voted upon at the general election and not the primary election. Write-in candidates are permitted to participate in the primary election. However, no write-in candidates are permitted to participate in the general election except in circumstances where there are two or fewer total candidates who qualify to participate in the primary election and one or both qualified candidates is a write-in candidate. When one or two write-in candidates qualify to participate in a primary election with two or fewer total candidates, the names of the write-in candidates who qualified to participate in the primary election shall be printed on the general election ballot in the same manner as non-write-in candidates who qualify for the general election. The County shall establish rules governing qualification and filing dates for write-in candidates including, but not limited to, ensuring the deadline to qualify as a write-in candidate precedes the printing of ballots and does not otherwise interfere with the ~~county's~~County's administration of the election.

Section 401.4: In the event a vacancy occurs in the office of supervisor, the remaining members of the Board shall within thirty (30) days of the vacancy fill the vacancy either by appointment for the unexpired term, by appointment until the qualification of a successor elected at a special election or by calling a special election. If the remaining members of the Board fail to fill the vacancy within such thirty (30) day period, the remaining members of the Board shall immediately cause a special election to be held to fill such vacancy. A special election to fill a vacancy in the office of Supervisor shall consist of a special primary election and if necessary, a special general election. A special primary election shall be held in the Supervisorial district in which the vacancy occurred on a Tuesday, at least 76 days, but not more than 90 days, following the adoption of the resolution calling the special election, except that any such special primary election may be conducted within 180 days following the adoption of such resolution in order that the special primary election or special general election may be consolidated with the next regularly scheduled Statewide election.

Candidates at the special primary election shall be nominated in the manner set forth in the Elections Code for the nomination of candidates for a nonpartisan office for a direct primary election, except that nomination papers shall not be circulated prior to the adoption of the resolution calling the special election and shall be filed with the Registrar of Voters for examination no later than 14 days after the adoption of the resolution calling the special primary election.

If only one candidate qualifies for the special primary election, that candidate shall be appointed to the vacancy by the remaining members of the Board for the unexpired term, shall serve exactly as if elected to such vacancy, and no special primary election or special general election to fill the vacancy shall be held. A candidate who receives a majority of all votes in the special primary election is elected to fill the vacancy for the unexpired term, and no special general election shall be held. In the event there are no more than two candidates for a vacancy, the office shall be voted upon at the special primary election, and no special general election shall be held.

When no candidate receives a majority of all votes in the special primary election, a special general election shall be held on the twelfth Tuesday

after the date of the special primary election. The two candidates who received the highest number of votes in the special primary election shall be the candidates in the special general election, and the one who receives the higher number of votes in the special general election is elected to fill the vacancy for the unexpired term. Write-in candidates are permitted to participate in the special primary election in accordance with the rules established by the ~~county~~County. However, no write-in candidates are permitted to participate in the special general election except as provided in Section 401.3.

In a special election to fill a vacancy in the office of supervisor, the Board may authorize either the special primary election or the special general election, or both, to be conducted wholly by mail, provided that the special primary election or the special general election to be conducted by mail does not occur on the same date as the ~~statewide~~Statewide election with which it has been consolidated. In no event may a special primary election or a special general election be conducted on the day after a ~~state~~State holiday.

Section 401.5: Term Limits.

(a) No person may serve for more than ~~two~~three terms as Supervisor, regardless of district represented~~, after the effective date of this section~~.

(b) Any person who is elected or appointed to an unexpired term as a Supervisor ~~after the effective~~ date ~~of this section~~ and who serves more than one-half of a full term of office shall be deemed, for the purposes of this section, to have served a full term.

(c) Any Supervisor who resigns or is removed from office with less than one-half of a full term remaining until the expiration of the term shall be deemed, for the purpose of this section, to have served a full term.

(d) A Supervisor's service in office in prior to the effective date of this section shall be counted toward the three-term limit, in accordance with (b) and (c) above.

Section 402: Compensation. Salaries of Supervisors are established by ordinance of the Board.

Section 402.1: While holding office and for one year after a Supervisor is ineligible for appointment to or employment in any other County position providing compensation.

Section 403: Election of Presiding Officer. At its first meeting following the first Monday after January first, or within thirty (30) days thereafter, the Board shall elect a Chairperson, Vice-Chairperson, and Chairperson Pro Tem. The Vice-Chairperson has full authority to act if the Chairperson is absent or unable to act. The Pro Tem has full authority to act if both the Chairperson and Vice-Chairperson are absent or unable to act.

Section 404: Quorum. Three Supervisors constitute a quorum for the transaction of business. Acts of the Board are invalid unless three Supervisors concur.

ARTICLE V
POWERS AND DUTIES OF THE BOARD OF SUPERVISORS

Section 500: General Powers. The Board has the jurisdiction and all powers granted to it by ~~general law~~General Law and this Charter.

Section 500.1: The Board has the power to establish, by ordinance, appointive offices other than those required by ~~general law~~General Law and this Charter and to combine and, having combined, to separate them.

Section 500.2: Unless otherwise specified in this Charter, the Board has the power to fill, by appointment, any vacancy that occurs in an ~~elective office~~Elective Office. The appointee holds office until the election and qualification of a successor. The successor is elected at the next primary election, or at the next primary and general elections, to complete the term, if it does not expire the following January, or to begin a new term of office. For all elections involving the ~~elective offices~~Elective Offices specified under Section 600, write-in candidates are permitted to participate in the primary election in accordance with ~~general law~~General Law. However, no write-in candidates are permitted to participate in the general election.

FULL TEXT OF MEASURE A (CONTINUED)

Section 500.3: Suspension of Officers. The Board may suspend from office, at its discretion, an ~~officer~~Officer who has been indicted for official misconduct~~,~~ or for a crime that would otherwise preclude a person, if convicted, from continued employment in the ordinary course of County service, or an offense involving moral turpitude~~, or an infamous crime~~. The Board shall fill the vacancy until final legal action is determined.

Section 500.4: Confirmation and Removal of Appointive Officers. The Board shall, by ordinance, establish a procedure to review and confirm the Chief Administrative Officer's appointment of, and to remove, the following Appointive Officers, and any additional Appointive Officers that the Board may designate by ordinance as being subject to this section:

(a) Assistant Chief Administrative Officer (or operationally similar position)
(b) Deputy Chief Administrative Officers (or operationally similar position)
(c) Office of Emergency Services Director (or operationally similar position)
(d) Public Health Officer
(e) Public Defender (if not appointed by the Board)

Except as provided for by this Charter, Appointive Officers shall serve at the pleasure of the Chief Administrative Officer and may also be removed, with or without cause, by a four-fifths vote of the Board.

Section 500.5: At the request of any city, district, or the ~~state~~State or federal government performing functions within the County, the Board may provide for the County's assumption of functions of the governmental entity which correspond to those of the County. The terms of the agreement shall be established in writing by the County and the governmental entity; and they may include provision for payment to the County, and notwithstanding the personnel and compensation provisions of this charter, may include provision for employment by the County of the governmental entity's personnel and employee benefits to be granted such personnel.

Section 501: Duties.

(a) The Board shall appoint the following ~~appointive officers~~Appointive Officers:
   ~~(a)~~ 1. The Chief Administrative Officer;
   ~~(b)~~ 2. The County Counsel;
   ~~(c)~~ 3. The Probation Officer, subject to the confirmation by a majority of the judges of the San Diego County Superior Court; ~~and~~
   ~~(d)~~ 4. The Clerk of the Board of Supervisors;
   5. The Independent Budget Analyst; and
   6. The Independent Program Auditor

   The Board may appoint a single person to serve as both Independent Budget Analyst and Independent Program Auditor.

(b) The Board may, by ordinance, establish the Public Defender as an Officer to be appointed by the Board.

(c) The Board may add, by ordinance, and shall thereafter appoint, additional Appointive Officers to perform independent evaluative functions such as audits, inspections, oversight, and the like, that are not duplicative of the functions of the Chief Administrative Officer or their appointees.

(d) Subject to the requirements of this Charter, a~~A~~ll other Appointive Officers, either established by this Charter, ~~general law~~General Law or ordinance, shall be appointed by the Chief Administrative Officer.

Section 501.1: The Board shall establish, by ordinance, the number of nonelective ~~employee~~Employee positions and designate all positions as either regular or temporary, and also shall provide for the powers, duties, qualifications, and the manner and terms of appointment of ~~employees~~Employees to such positions.

Section 501.2: The Board shall adopt an ordinance to establish the compensation of all ~~officers~~Officers and ~~employees~~Employees, which shall implement and conform to any applicable provisions contained in

memorandums of agreement with recognized employee organizations for those ~~employees~~Employees represented by such organizations. When establishing compensation, the Board shall consider, among other factors, the following:

(a) the prevailing rate of compensation paid and fringe benefits provided by private employers in the County and by other public employees in the State for similar quality or quantity of service;
(b) the fringe benefits provided by the County; and
(c) the revenues available to the County for payment of compensation. The Board of Supervisors shall not delegate legislative power or responsibility which they were elected to exercise in the adoption of any ordinance or resolution setting compensation for appointive County ~~officers~~Officers and ~~employees~~Employees. This prohibition against unlawful delegation of the legislative responsibility to set compensation for appointive County ~~officers~~Officers and ~~employees~~Employees shall extend to any scheme or formula which seeks to fix the compensation of appointive County ~~officers~~Officers and ~~employees~~Employees at the level of compensation paid to ~~officers~~Officers or ~~employees~~Employees of any other public agency.

Section 501.3: The Board shall require adequate bond or, in the alternative, an insurance policy in accordance with ~~state general law~~State General Law, the premium for which is paid by the County, from all ~~officers~~Officers and ~~employees~~Employees who handle funds and, when necessary, from other ~~officers~~Officers and ~~employees~~Employees.

Section 501.4: The Board shall adopt, by ordinance, an administrative code establishing the powers and duties of all ~~officers~~Officers and the procedures and rules of operation of all ~~departments~~Departments.

Section 501.5: The Board shall provide for the regulation of the marking and operation of County vehicles.

Section 501.6: The Board shall establish, by resolution or ordinance, rules for the Civil Service in accordance with this Charter.

Section 501.7: The Board shall establish rules which provide for the administration of employer-employee relations and establish a neutral appellate authority regarding unfair labor practices and representation cases. The rules shall not be in conflict with State law.

Section 501.8: The Board, or such persons as the Board shall specify, shall represent the County in employer-employee relations and salary matters.

Section 501.9: Non-interference. No member of the Board nor any member of the Supervisor's staff shall give orders, instruct, or interfere, publicly or privately, with any ~~officer~~Officer or ~~employee~~Employee appointed by or appointed under the Chief Administrative Officer except through the Chief Administrative Officer.

~~This section does not limit a member of the Board or member of the Supervisors' staff from seeking information.~~

~~The Chief Administrative Officer shall establish a procedure for responding to requested information from members of the Board and the staff.~~

For purposes of clarifying this section and without modifying it, this section does not limit a member of the Board or member of the Supervisors' staff from:

(a) Requesting and receiving information relating to County policy, procedure, activities, and the like, where not otherwise prohibited by law;
(b) Requesting and receiving assistance in preparing individual Supervisor-led initiatives and in subsequent follow-up, where such assistance is provided in accordance with adopted Board policy that may set time, effort, and scope limitations on the assistance, and where prompt notice of the request for such assistance is provided to the Chief Administrative Officer;
(c) Utilizing internal services and support in the same manner and subject to the same rules and procedures as County Departments, unless expressly required otherwise; or

FULL TEXT OF MEASURE A (CONTINUED)

(d) Providing input on the hiring or dismissal of Officers or Employees who are managers serving in the Unclassified Service pursuant to Section 908.2, subdivisions (d), (e) and (g).

A violation of the provisions of this section shall constitute an infraction and violation by a member of the Board of Supervisors shall also constitute misconduct in office. The District Attorney shall enforce the provisions of this section.

ARTICLE VI
ELECTIVE ~~OFFICERS~~OFFICES

Section 600: Reserved.~~Elective Officers.~~ ~~In addition to Supervisors, the elective officers are:~~

~~(a) Assessor/Recorder/County Clerk~~
~~(b) District Attorney~~
~~(c) Sheriff,~~
~~(d) Treasurer/Tax Collector, and~~
~~(e) Members of the Board of Education,~~

~~each of whom is nominated and elected according to general law and this Charter.~~

Section 601: Consolidation of the Offices of Assessor and Recorder/County Clerk. The ~~officers~~Officers of the Assessor and Recorder/County Clerk shall be consolidated at noon on January 2, 1995, the operative date of this section, and the duties of the Assessor/Recorder/County Clerk, including all of the duties now performed by both, shall be performed by one person elected at the ~~statewide~~Statewide election in 1994 for a four year term which shall begin at noon on January 2, 1995.

Section 602: Consolidation of the Offices of Treasurer and Tax Collector. The offices of Treasurer and Tax Collector are consolidated, and the duties of the Treasurer/Tax Collector shall be performed by one person elected by ~~general law~~General Law.

Section 603: County Board of Education. The County Board of Education consists of five members elected from and by the voters of their districts.

Section 603.1: At the completion of the present incumbent's term of office, each newly elected member of County Board of Education shall hold office for a four-year term beginning on the first Monday after January first following election, and continue to serve until the election and qualification of a successor. For all elections involving members of the County Board of Education under this Section 603.1 and Section 603.2, write-in candidates are permitted to participate in the primary election in accordance with the rules established by the County. However, no write-in candidates are permitted to participate in the general election except as provided in Section 401.3.

Section 603.2: A vacancy on the County Board of Education is filled from the district in which it occurs within forty-five days by appointment of a majority of the remaining members of the County Board of Education or thereafter by appointment by the Board of Supervisors. The appointee holds office until the election and qualification of a successor. The successor is elected at the next general election, either to complete the term, if it does not expire the following January, or to begin a new four-year term of office.

Section 603.3: The County Board of Education may, by resolution, change the boundaries of educational districts; however, a change of boundaries may not be made between February first and December first of an even numbered year, may not affect the term of office of an incumbent member and may not take effect until a certified copy of the resolution has been filed with and approved by the Board of Supervisors.

Section 603.4: The County Board of Education shall, by majority vote appoint the Superintendent of Schools, either to serve at its pleasure, or on a fixed term contract which shall not exceed four years. The Board of Education may, by a majority vote, remove the Superintendent.

Section 604: Restrictions on the District Attorney. The District Attorney and the District Attorney's deputies may not engage in private law practice.

Section 605: Sheriff. The Sheriff shall organize the Sheriff's ~~Department~~Office for efficient and effective law enforcement.

Section 606: Citizens Law Enforcement Review Board.

(a) The Board of Supervisors, by ordinance, shall establish a Citizens Law Enforcement Review Board consisting of not less than nine (9) nor more than fifteen (15) members nominated by the Chief Administrative Officer and appointed by the Board of Supervisors. Members of the Citizens Law Enforcement Review Board shall serve without compensation for terms not to exceed three years as established by ordinance, and members shall be appointed for not more than two consecutive full terms. County employees and persons employed as peace officers or custodial officers shall not be eligible to be members of the Citizens Law Enforcement Review Board.

(b) Members of the Citizens Law Enforcement Review Board shall serve at the pleasure of the Board of Supervisors, and they may be removed at any time by a majority vote of the Board of Supervisors.

(c) Vacancies on the Citizens Law Enforcement Review Board shall be filled for the balance of the unexpired term in the same manner as the position was originally filled.

(d) The Citizens Law Enforcement Review Board shall have the power to subpoena and require attendance of witnesses and the production of books and papers pertinent to its investigations and to administer oaths.

(e) The Citizens Law Enforcement Review Board may appoint in accordance with its established procedures such personnel as may be authorized by the Board of Supervisors. Notwithstanding any other provision of this Charter, any authorized executive director and investigators of the Citizens Law Enforcement Review Board shall be in the classified or the unclassified service as determined, by ordinance, by the Board of Supervisors.

(f) The Board of Supervisors, by ordinance, shall establish the duties of the Citizens Law Enforcement Review Board and its duties may include the following:

(1) Receive, review and investigate ~~citizen~~complaints which charge peace officers or custodial officers employed by the Sheriff's ~~Department~~Office or the Probation Department with (A) use of excessive force, (B) discrimination or sexual harassment in respect to members of the public, (C) the improper discharge of firearms, (D) illegal search or seizure, (E) false arrest, (F) false reporting, (G) criminal conduct or (H) misconduct. All action complaints shall be in writing and the truth thereof shall be attested under penalty of perjury. "Misconduct" is defined to mean and include any alleged improper or illegal acts, omissions or decisions directly affecting the person or property of a specific ~~citizen~~person by reason of:

1. An alleged violation of any general, standing or special orders or guidelines of the Sheriff's ~~Department~~Office or the Probation Department; or
2. An alleged violation of any state or federal law; or
3. Any act otherwise evidencing improper or unbecoming conduct by a peace officer or custodial officer employed by the Sheriff's ~~Department~~Office or the Probation Department.

(2) Review and investigate the death of any individual arising out of or in connection with actions of peace officers or custodial officers employed by the Sheriff's ~~Department~~Office or the Probation Department, regardless of whether a complaint regarding such death has been filed with the Citizens Law Enforcement Review Board.

(3) Prepare reports, including at least the Sheriff or the Probation Officer as recipients, on the results of any investigations conducted by the Citizens Law Enforcement Review Board in respect to the activities of peace officers or custodial officers, including recommendations relating to the imposition of discipline and recommendations relating to any trends in regard to employees involved in ~~citizen~~ complaints.

(4) Prepare an annual report to the Board of Supervisors, the Chief Administrative Officer, the Sheriff and the Probation Officer summarizing the activities and recommendations of the Citizens Law Enforcement Review Board, including the tracking and identification of trends in respect to all complaints received and investigated during the reporting period.

(5) Notify in writing any ~~citizen~~person having filed a complaint with the Citizens Law Enforcement Review Board of the disposition of his or her complaint. The Chief Administrative Officer shall also receive appropriate notification of the disposition of ~~citizen~~complaints.

(6) Review and make recommendations on policies and procedures of the Sheriff and the Probation Officer.

(7) Establish necessary rules and regulations for the conduct of its business, subject to approval of the Board of Supervisors.

(8) Perform such other duties as the Board of Supervisors, by ordinance, may assign to the Citizens Law Enforcement Review Board.

(9) Established rules and procedures for receipt of complaints from detention facility inmates.

(g) In the event that a County Department of Corrections is established, the Citizens Law Enforcement Review Board shall have the same powers and duties in respect to that Department, its Director, and its peace officer and custodial officer employees, as the Citizens Law Enforcement Review Board has in respect to the Sheriff, the Probation Officer and their ~~departments~~Departments and ~~employees~~Employees.

FULL TEXT OF MEASURE A (CONTINUED)

ARTICLE VII
APPOINTIVE OFFICERS AND BOARDS

Section 700: Reserved. ~~**Appointive Officers.** The appointive officers include:~~

~~Alternate Public Defender~~
~~Auditor and Controller~~
~~Chief Financial Officer~~
~~Chief Information Officer~~
~~Chief Probation Officer~~
~~Clerk of the Board of Supervisors~~
~~County Counsel~~
~~County Librarian~~
~~County Veterinarian~~
~~Director of Agriculture, Weights & Measures~~
~~Director of Animal Services~~
~~Director of Child Support Services~~
~~Director of Emergency Services~~
~~Director of Environmental Health~~
~~Director of General Services~~
~~Director of Health and Human Services Agency~~
~~Director of Housing & Community Development~~
~~Director of Human Resources~~
~~Director of Media and Public Relations~~
~~Director of Parks and Recreation~~
~~Director of Planning and Land Use~~
~~Director of Public Works~~
~~Director of Purchasing and Contracting~~
~~Medical Examiner~~
~~Public Administrator/Public Guardian~~
~~Public Defender~~
~~Registrar of Voters~~
~~and all other officers who may be required by general law or ordinance. Notwithstanding this listing of appointive officers, the Board of Supervisors by ordinance may establish or abolish appointive offices, or revise their respective titles, in accordance with general law or this Charter.~~

Section 701: ~~[Reserved.]~~**Reserved.**

Section 702: ~~[Reserved.]~~**Independent Budget Analyst and Program Auditor.** The Board may appoint an Independent Budget Analyst and an Independent Program Auditor to perform the functions set forth below. The Board may appoint a single Officer to perform both functions. The Independent Budget Analyst and Independent Program Auditor shall serve at the pleasure of the Board in the Unclassified Service and may be removed at any time by a majority vote of the Board.

Section 702.1: Independent Budget Analyst
The Office of the Independent Budget Analyst shall, as directed by the Board or upon request of a Supervisor:

(a) Develop independent revenue, expenditure, and cost-growth projections
(b) Analyze and evaluate the assumptions underlying the Chief Administrative Officer's proposed budget
(c) Model alternative fiscal scenarios, including conservative, baseline, and growth-based projections
(d) Provide fiscal analysis of policy proposals, budget requests, and reallocation options
(e) Identify tradeoffs and options for achieving Board priorities within available resources
(f) Track long-term fiscal conditions, staffing trends, and structural budget risks
(g) Publish clear, accessible fiscal analyses to inform the Board and the public

Any person serving as the Independent Budget Analyst shall have demonstrated leadership and professional competency or significant educational qualifications in the area of finance, economics, business, or other relevant field of study. In addition, such appointee shall have experience in the area of municipal finance or substantially similar equivalent experience.

Section 702.2: Independent Program Auditor.
The Independent Program Auditor shall, when directed by the Board:

(a) Conduct independent evaluations of County Departments, programs, services, and initiatives
(b) Assess the effectiveness, outcomes, and cost-effectiveness of County Departments, programs, services, and initiatives
(c) Evaluate new program proposals and pilot initiatives
(d) Identify evidence-based alternatives and best practices
(e) Conduct follow-up evaluations to determine whether corrective actions or reforms achieved intended results
(f) Publish evaluation findings publicly to promote transparency and accountability

The Independent Program Auditor shall conduct evaluations as directed by the Board, including approval of the parameters and design of the evaluation, while preserving the Independent Program Auditor's professional independence over analysis, conclusions, and reporting.

Section 703: Chief Administrative Officer. The Chief Administrative Officer exercises the Board's administrative supervision over affairs of the County delegated to that ~~officer~~Officer, over all organizational units within the Office of the Chief Administrative Officer, and over all ~~departments~~Departments, except the Civil Service Commission and the offices of Assessor/Recorder/County Clerk, District Attorney, Sheriff, and the Treasurer/Tax Collector. ~~The Fire Authority is an organizational unit within the Office of the Chief Administrative Officer, not a department.~~ County Fire falls within the purview of the Chief Administrative Officer, who shall ensure the continuance of fire protection and emergency medical services within the San Diego County Fire Protection District. The Chief Administrative Officer is responsible to the Board for the proper administration of such affairs of the County~~.~~.

Section 703.1: The Chief Administrative Officer shall be in the Unclassified Service and shall serve at the pleasure of the Board. The Chief Administrative Officer may be removed by a majority vote of all members of the Board fifteen days after written notice of intention to remove.

Section 703.2: The Chief Administrative Officer assists the Board in coordinating the function and operations of the County.

Section 703.3: The Chief Administrative Officer is responsible for carrying out all of the Board's policy decisions that pertain to the functions assigned to that ~~officer~~Officer.

FULL TEXT OF MEASURE A (CONTINUED)

Section 703.4: The Chief Administrative Officer supervises the expenditures of all ~~departments~~Departments and reports to the Board whether those expenditures are necessary.

Section 703.5: The Chief Administrative Officer shall attend Board meetings and shall have the right to report on or discuss any matters before the Board which concern the affairs of any of the ~~departments~~Departments under that ~~officer's~~Officer's supervision.

Section 703.6: For assistance in carrying out official duties, the Chief Administrative Officer may call upon ~~officers~~Officers and ~~employees~~Employees in ~~departments~~Departments or organizational units under the Chief Administrative Officer's supervision, so long as that assistance falls within the legally authorized scope of their activities.

Section 703.7: To promote efficiency, the Chief Administrative Officer may recommend to the Board and to the Civil Service Commission the temporary transfer of personnel within the ~~departments~~Departments under that ~~officer's~~Officer's supervision. The Chief Administrative Officer may also recommend to the Board the creation or abolition of positions in any ~~departments~~Departments. New positions shall not be created or filled without the recommendation of the Chief Administrative Officer.

Section 703.8: [~~Reserved~~]**Reserved.**

Section 703.9: The Chief Administrative Officer is responsible for administering the personnel system in accordance with this Charter, the Civil Service Rules and the policy direction of the Board.

Section 703.10: In cases where the County intends to employ an independent contractor, the Chief Administrative Officer shall first determine that the services can be provided more economically and efficiently by an independent contractor than by persons employed in the Classified Service.

Section 704: County Counsel. The County Counsel serves as the attorney for the County, and in that capacity acts as legal advisor to the Board and County officials in their official capacity. County Counsel also represents the County, which acts through the Board and County ~~officers~~Officers, in their official capacity, in civil actions and proceedings in which they are involved. In accordance with ~~state~~State law, the Board may, but is not required to, authorize County Counsel to defend ~~officers~~Officers and ~~employees~~Employees, who are defendants in a criminal or administrative action prosecuted by the State or County.

Section 704.1: The County Counsel performs all of the duties of a district attorney, except those of a public prosecutor, and all duties which a County Counsel is authorized by statute, this Charter, or County ordinance to perform.

Section 704.2: The County Counsel represents the Public Administrator in estate matters administered by that ~~officer~~Officer, collects the attorney's fee allowed by law, and pays it into the County Treasury.

Section 704.3: When the County Counsel determines that a conflict of interest exists in the performance of a duty and chooses to be disqualified, the Board may ask the District Attorney to perform that duty. However, the Board retains the power to employ counsel to assist the County Counsel at other times.

Section 704.4: With the Board's approval, the County Counsel and the District Attorney may agree to perform any of each other's functions; however, the agreement may be canceled at any time by the County Counsel, by the District Attorney, or by the Board.

Section 704.5: The County Counsel and the County Counsel's deputies may not engage in private law practice.

Section 705: Purchasing Agent. The Director of the Department of Purchasing and Contracting acts as the Purchasing Agent. Except in cases of emergency, the ~~Purchasing Agent~~Director of the Department of Purchasing and Contracting shall make all purchases for the County, other than of real property, and may make them only upon receipt of a requisition

signed by an official authorized by the Board. Emergency purchases may be made by others authorized by the Board, but they shall be subsequently either approved by the ~~Purchasing Agent~~Director of the Department of Purchasing and Contracting or ratified by a four-fifths vote of the Board. Purchases ~~of property~~ for the County, other than of real property, are invalid unless made as specified in this Section.

Section 705.1: Except in cases of emergency, the ~~Purchasing Agent~~Director of the Department of Purchasing and Contracting may not issue a formal purchase order without the Auditor and Controller's certification that sufficient funds are, or will become, available in the proper fund.

Section 705.2: The ~~Purchasing Agent~~Director of the Department of Purchasing and Contracting shall follow the rules and procedures established by ordinance of the Board for the purchase of necessary materials, supplies, furnishings, and property.

Section 705.3: ~~A Supervisor or an officer shall not attempt, directly or indirectly, to influence or coerce the Purchasing Agent in the performance of duty. Except for the purpose of inquiry, a Supervisor shall not deal directly with the Purchasing Agent for the purpose of buying supplies. The Board shall conduct official business with the Purchasing Agent only as a Board convened in regular session.~~An Officer shall not attempt, directly or indirectly, to influence or coerce the Director of the Department of Purchasing and Contracting for illegal personal gain or in a manner that contravenes the prohibition on interference set forth in section 501.9.

Section 705.4: Prohibition on Requiring Project Labor Agreements.

(a) For the purposes of this Section, the following definitions shall apply:

~~(1)~~1. "Contractor" shall mean and include a contractor, subcontractor, material supplier, carrier or other person or firm engaged in the completion of a construction project;

~~(2)~~2. "Construction project" shall mean and include any project for the construction, rehabilitation, alteration, conversion, extension, maintenance, repair, or improvement of any structures or real property;

~~(3)~~3. "Project labor agreement" shall mean any pre-hire, collective bargaining or similar type of agreement entered into with one or more labor organizations, employees or employee representatives that establishes the terms and conditions of employment on a construction project.

(b) Except as required by State or federal law as a contracting or procurement obligation, or as a condition of the receipt of State or federal funds, the County shall not require a contractor on a construction project to execute or otherwise become a party to a project labor agreement as a condition of bidding, negotiating, awarding or the performing of a contract.

(c) Nothing in this Section shall be construed as prohibiting private parties that may perform work on County construction projects from entering into project labor agreements or engaging in activity protected by law.

Section 706: Director of Public Works. The Director of Public Works acts as County Engineer and Road Commissioner and County Surveyor.

Section 706.1: The Director of Public Works has control over County rock quarries and gravel pits.

Section 706.2: The Director of Public Works, subject to regulations prescribed by the Board, has control over the construction and maintenance of all County roads and bridges, and related material and property, except work done under contract. The Director shall inspect contract work as it progresses and shall approve it, in a written report to the Board, after it has been completed.

Section 706.3: The Director of Public Works may not authorize work on a road or bridge until all rights of way have been obtained, approved by the County Counsel, and accepted by the Board.

Section 706.4: The Director of Public Works provides estimates for each proposed construction job. If the estimates are approved by the Board and incorporated in the final budget, they are binding. Neither the Director nor any other person may approve the use of labor, material, or equipment, the cost of which will exceed approved estimates on a project. The continuation of a project in excess of approved estimates can be authorized only by a majority vote of the Board.

Section 706.5: The Board may specify whether construction work on a County road or bridge will be done by contract or by the County and may, by a four-fifths vote, authorize nonbudgeted construction work on a road or bridge if the Auditor and Controller certifies that funds are available.

Section 707: ~~[Reserved.]~~**Reserved.**

Section 708: Restrictions on the Public Administrator. The Public Administrator may not act as a private administrator, executor, or administrator with the will annexed.

Section 709: District Attorney. The District Attorney is the public prosecutor of the County whose duties are prescribed by law.

Section 710: ~~Citizen~~Community Advisory Board. The Board shall, by ordinance, establish and empower ~~citizen~~community advisory boards on public health and welfare.

Section 710.1: The Board may compensate, consolidate, or separate ~~Citizen~~community advisory boards.

Section 710.2: In selecting the members of ~~citizen~~community advisory boards, the Board shall consider~~, among other factors, qualifications, race, age, sex, and location~~ the purpose of ~~residence. Each~~the community advisory board ~~shall be~~and shall appoint individuals that best reflect all County communities impacted by the community advisory board and their geographic, cultural, socioeconomic, and other characteristics, so that each advisory board is representative of the entire County.

Section 711: County Ethics Commission. The Board shall establish by ordinance an Ethics Commission that shall have the powers, duties and responsibilities set forth in this section, ordinance, and elsewhere in the Charter.

Section 711.1: Composition; Appointment; Term.

(a) The Ethics Commission shall consist of seven commissioners that shall serve without compensation.

(b) Each Supervisor shall appoint one commissioner, and County Counsel shall appoint two commissioners.

(c) All appointees to the Ethics Commission shall be subject to confirmation by a majority vote of the Board of Supervisors.

(d) Commissioners shall serve four-year staggered terms that commence on February 1 and end on January 31.

(e) A Commissioner may be removed for cause by a vote of five of the seven commissioners.

(f) A Commissioner may be removed by the Board in accordance with Section 500.4 of this Charter.

Section 711.2: Qualifications, Term of Service, and Limitation on Elective Office.

(a) Qualifications. Qualifications for appointment to the Ethics Commission shall be set forth by ordinance, which shall include, at a minimum, the following:

1. Commissioners shall be residents of San Diego County during the tenure of their service;
2. Commissioners shall be, or shall have formerly served as, judges, attorneys, educators, or professionals with experience in the areas of professional, government, or corporate ethics and accountability;
3. Commissioners shall not have any conflicts of interest as set forth by ordinance

(b) Limitation on Continuous Service. No person who has served a complete four-year term shall be eligible for reappointment to a subsequent term unless and until they have not served on the Ethics Commission for at least two years.

(c) Limitation on Future Service and Employment. No commissioner nor any Ethics Commission staff may seek election to any Elective Office unless the election for that office is to be held at least two years following the Commissioner's last day of service on the Ethics Commission.

Section 711.3: Vacancies. Appointments to fill an Ethics Commission vacancy shall be made within 90 days by the same appointing authority who appointed the prior holder of the position. An appointment to fill a vacancy shall be for the unexpired term. A vacancy or vacancies shall not impair the ability of the remaining members to exercise the powers of the Ethics Commission.

Sec. 711.4: Duties and Responsibilities of the Ethics Commission. The Ethics Commission shall:
(a) Review and investigate signed complaints alleging ethics violations involving individual in Elective Office;
(b) Make findings and recommendations based on a legal standard of clear and convincing evidence;
(c) Issue public reports of its investigations, including substantiated and unsubstantiated findings and evidence-based recommendations; and
(d) Perform other duties related to the Ethics Commission's business that the Board may establish by ordinance

Sec. 711.5: Subpoenas and Oaths. The Board may, by ordinance, grant the Ethics Commission the power to subpoena witnesses and materials and to administer oaths.

Sec. 711.6: Rules, Regulations and Proposals.
The Commission shall establish necessary rules and regulations for the conduct of its business, including the appointment of any necessary personnel, subject to approval of the Board of Supervisors.

ARTICLE VIII
BUDGET AND ACCOUNTING

Section 800: Budget. The preparation and adoption of the County Budget and the appropriation, accounting, and transfer of funds are governed by ~~general law~~General Law and this Charter.

Section 800.1: Pension Stabilization. Once the Board of Supervisors has appropriated funds for pension stabilization, these funds shall not be used for any purpose other than pension-related liabilities. Pension-related liabilities shall include, but are not limited to, any liability associated with a defined benefit, defined contribution or other post-employment benefit.

Section 800.2: Debt. Proceeds of any long-term obligation of the General Fund of the County shall not be used for recurring operational needs.

Section 801: Auditor and Controller. As the chief accounting officer of the County, the Auditor and Controller shall:
(a) in accordance with ~~general law~~General Law and generally accepted accounting principles, maintain accounts of the financial transactions of all ~~departments~~Departments and of those districts whose funds are kept in the County Treasury;
(b) prescribe and supervise accounting systems and necessary financial reports; and
(c) prepare reports the Board or the Chief Administrative Officer considers necessary for management of County operations.

Section 801.1: The Auditor and Controller shall provide for an audit:
(a) if a vacancy occurs in the office of a ~~department~~Department head;
(b) if statute or ordinance requires;
(c) if the Board requests;
(d) if, in the Auditor and Controller's judgment, circumstances demand; or
(e) if an ~~officer~~Officer requests one for that ~~officer's department~~Officer's Department and obtains the approval of the Board.

Section 801.2: The Auditor and Controller shall file reports of all audits with the Board.

Section 802: External Audit. The Board shall order an annual audit of ~~county~~County financial statements to be conducted by a certified public accountant in accordance with generally accepted auditing standards. The audit shall be completed and the report submitted to the Board as soon as possible after the end of the fiscal year, and the report shall be made available for public inspection by the Clerk of the Board.

Section 803: Access to Records. The Auditor and Controller or an authorized deputy shall have the cooperation of ~~officers~~Officers and ~~employees~~Employees, and access to records and documents necessary to conduct an audit or investigation.

Section 803.1: Failure of an ~~officer~~Officer or ~~employee~~Employee to cooperate with the Auditor and Controller or an authorized deputy during an audit or investigation constitutes misconduct, and the Auditor and Controller may file a written complaint with the Board. If the Board, after investigation, finds the complaint valid, it shall suspend the person immediately without pay and may not order the suspension lifted until it determines that the reasonable requests of the auditor or investigator have been satisfied.

Section 804: Expenditures.
(a) Money in the County Treasury may not be drawn or obligated except in accordance with ~~general law~~General Law or this Charter.

~~**Section 804.1:**~~
(b) An investigation of a claim against the County Treasury may be conducted by the Auditor and Controller. If the legality of the claim cannot be established, payment will be denied and the claim returned, with an explanation, to the requesting ~~officer~~Officer.
(c) An investigation of a claim against the County Treasury may be conducted by the Auditor and Controller. If the legality of the claim cannot be established, payment will be denied and the claim returned, with an explanation, to the requesting Officer.
(d) The Auditor and Controller shall post all County spending data to the County's public internet website in an accessible format.
(e) The Auditor and Controller shall order an annual independent financial and performance audit of the County's expenditures to be conducted by a certified public accountant in accordance with generally accepted auditing standards. The Auditor and Controller shall make the audit findings available for public inspection and shall implement oversight mechanisms to ensure corrective actions are implemented.

Section 805: Limitation on Charter Amendments Imposing Mandatory Costs.
(a) Notwithstanding any other provision of this Charter, except as provided in subdivision (c) of this section, any amendment to the Charter of the County of San Diego taking effect on or after November 3, 1992 imposing any mandatory service, duty or cost on the County shall be effective only if such amendment is accompanied at the same time by a new, specific and legally available source of revenue to fully fund all costs created by such amendment for each and every year.
(b) In the event full funding of any amendment is not provided as required by subdivision (a), the mandate shall be void and unenforceable.
(c) The restriction provided in subdivision (a) shall not apply to any amendment to the Charter of the County of San Diego which is approved by a two-thirds vote of the qualified electors of the County of San Diego.
(d) If any section, part, clause or phrase of this amendment is for any reason held invalid or unconstitutional, the remaining portion shall not be affected but shall remain in full force and effect.
(e) It is the intent of the voters that the provisions of this section shall apply to any proposed amendments to the Charter of the County of San Diego submitted to the voters at the election to be held on November 3, 1992 or thereafter.

ARTICLE IX
PERSONNEL SYSTEM

Section 900: Personnel System. The County shall establish, implement, and maintain a personnel system which will assure:
(a) recruitment, selection, promotion and retention of ~~employees~~Employees on the basis of merit; and

(b) the development of a County career service.

Section 901: Employment Policy. The County shall hire, transfer, promote, compensate, discipline and dismiss individuals on the basis of job-related qualifications, merit, and equal opportunity without regard to age, color, creed, disability, national origin, political affiliation, race, religion, sex, or any other non-job-related factor.

Section 902: Administration. The Director of Human Resources, who is appointed by the Chief Administrative Officer, is responsible for the administration of the personnel ~~department~~Department in accordance with this Charter, the Rules for the Unclassified Service, and the Rules for the Classified Service which also are referred to as Rules for the Civil Service in this Charter.

Section 903: Civil Service Commission. The Civil Service Commission consists of five persons appointed by the Board. Each Commissioner shall be an elector of the County.

Section 903.1: Each Commissioner serves a six-year term beginning and ending at noon on the first Monday after January first and continues to serve until the appointment and qualification of a successor. No more than one Commissioner's term may expire in the same year. A Commissioner is limited to one full six-year term; provided, however, that a Commissioner may not be appointed to a full six-year term if the Commissioner has served more than three years of the unexpired term of a previous Commissioner.

Section 903.2: A Commissioner may be removed by a majority vote of the Board if the Board serves the Commissioner a written statement containing the reasons for removal, records the statement in its minutes, and allows the commissioner the opportunity to be heard publicly.

Section 903.3: A vacancy on the Commission shall be filled within forty-five days of its occurrence by the Board for the unexpired term.

Section 904: General Duties of the Civil Service Commission. The Commission is responsible for protecting the merit basis of the personnel system through its appellant authority, investigative powers, and review of Civil Service Rules.

Section 904.1: The Commission is the administrative appeals body for the County in personnel matters authorized by this Charter. Upon appeal, the Commission may affirm, revoke or modify any disciplinary order, and may make any appropriate orders in connection with appeals under its jurisdiction. The Commission's decisions shall be final, and shall be followed by the County unless overturned by the courts on appeal.

Section 904.2: The Commission's appellate authority includes appeals from actions involving:

(a) discipline of classified ~~employees~~Employees with permanent status;
(b) the selection process;
(c) complaints of discrimination in personnel matters based on non-job-related factors;
(d) charges filed by ~~a citizen~~an individual against a person in the classified service, in accordance with the Civil Service Rules; and
(e) such other matters as are provided for in the Civil Service Rules.

Section 904.3: The Commission reviews proposed Rules for the Civil Service pursuant to Section 910 of the Charter.

Section 904.4: The Commission shall establish written procedures to govern the conduct of its duties. The procedures of the Commission shall provide for regular meetings to be held at least monthly, the election of a president and the keeping of minutes of its proceedings. The Commission shall annually submit to the Board a budget for its usual and necessary operating expenses.

Section 904.5: The Commission may advise the Director of Human Resources, the Chief Administrative Officer and the Board on matters concerning personnel policies and the administration of the personnel system.

FULL TEXT OF MEASURE A (CONTINUED)

Section 905: Hearing Officers of the Commission. The Commission may appoint one of its members, a hearing officer or board to hear appeals and submit findings and a proposed decision to the Commission for its review and action. The appointment of a hearing officer or board is subject to the budgetary and personnel constraints established by the Board.

Section 906: Staff of the Commission. The Commission shall employ an Executive Officer who shall be in the Unclassified Service. The Commission shall employ such other staff as necessary to perform its responsibilities. Such other staff shall be in the Classified Service, and shall be subject to the budgetary and personnel constraints established by the Board. The Commission's staff has no authority to administer personnel services and programs.

Section 907: Investigative Powers of the Commission. For purposes of protecting the merit basis of the personnel system, the Commission has the power to investigate, either as a group or as individuals, the conduct and operations of all ~~departments~~Departments, to administer oaths, and to subpoena witnesses and materials.

Section 907.1: In connection with an investigation, the Commission may make any necessary orders, including, but not limited to, back pay and classification adjustments, to carry out the provisions of the Charter and the Civil Service Rules.

Section 907.2: The Commission has the power to take legal action, as provided by ~~general law~~General Law for boards of supervisors, against a person who, by failing to comply with its subpoena or by refusing to testify, shall be considered in contempt.

Section 908: Classified and Unclassified Services. Employment in the County is divided into the Classified and Unclassified Services.

Section 908.1: The Classified Service consists of all offices and positions not included by this Charter in the Unclassified Service.

Section 908.2: The Unclassified Service consists of:

(a) elective ~~officers~~Officers, their chief deputies, and special assistants employed by the elective ~~officers~~Officers;
(b) the Assistant District Attorney, the Chief Deputy District Attorney, the Chief of the Bureau of Investigation, the Assistant Chief of the Bureau of Investigation and the Confidential Secretary to the District Attorney, and not more than three special assistants designated by the District Attorney;
(c) the Under-Sheriff, three Assistant Sheriffs, and not more than three special assistants or deputies designated by the Sheriff;
(d) each appointive County ~~officer~~Officer appointed by the Board of Supervisors or the Chief Administrative Officer and that ~~officer's~~Officer's principal assistant, or principal assistants.
(e) management ~~employees~~Employees having significant responsibilities for formulating or administering County policies and programs. Each such position shall be exempted from the Classification Service, by ordinance, upon recommendation of the Chief Administrative Officer and approval by the Board;
(f) members of appointed boards and commissions;
(g) an Executive Officer employed by the Civil Service Commission;
(h) persons serving without compensation;
(i) ~~officers~~Officers and ~~employees~~Employees whose appointments must be approved by the State;
(j) students engaged in regularly established, accredited training programs;
(k) persons employed as guards or keepers in law enforcement agencies, including the offices of Sheriff and Chief Probation Officer, for no more than one hundred and twenty (120) working days during a fiscal year;
(l) deputy registrars of voters employed only to register electors and election workers;
(m) persons employed seasonally as guards, custodians, rangers, or caretakers in County parks;
(n) persons employed for temporary expert professional services in positions that have been exempted from the Classified Service by the Director of Human Resources for a specified period; and

(o) persons employed for no more than one hundred and twenty (120) working days during a fiscal year on a part-time or intermittent basis in positions exempted from the Classified Service by the Director of Human Resources.

Section 909: Appointment and Dismissal of Employees. Officers shall have the power to appoint ~~employees~~Employees to positions that the Board may authorize.

Section 909.1: Persons in the Classified Service appointed to regular positions from eligible lists, who have successfully completed the probationary period for that position, shall only be removed for cause and in accordance with the Civil Service Rules. All other persons in the Classified Service serve and are removed from service at the pleasure of their appointing authorities.

Section 909.2: Persons in the Unclassified Service shall acquire no tenure in their position and serve at the pleasure of their appointing authorities. The Board shall adopt rules governing persons other than ~~elective office~~those holding Elective Office in the Unclassified Service. The provisions of Sections 904.3 and 910 of the Charter shall not apply to the adoption or amendment of such rules. The Rules for the Classified Service shall not apply to persons in the Unclassified Service.

Section 910: Rules for Civil Service. The Civil Service Rules, which have the force and effect of law, are implemented by the Director of Human Resources under the administrative jurisdiction of the Chief Administrative Officer. The Commission reviews proposed Rules and amendments and, after a public hearing, makes any modifications it deems appropriate, and transmits the Rules and amendments to the Board. The Board adopts or rejects, but may not modify, the Rules and amendments following review by the Commission in accordance with the procedures established pursuant to Section 910.1(l).

Section 910.1: The Rules for the Classified Service shall include provisions for:

(a) determining the classification of all positions according to duties and responsibilities;
(b) the development of a County career service;
(c) appointments, not exceeding a period of one year, to temporary positions;
(d) open and promotional competitive examinations for classified ~~employees~~Employees to measure the relative fitness of applicants; and the creation of eligible lists of persons qualified through examination and their certification therefrom;
(e) a process for the temporary suspension of competitive examinations where impractical for positions requiring extraordinary, scientific, professional or expert qualifications;
(f) the making of provisional appointments in the absence of eligible lists. Provisional appointments shall not exceed six months and may not be renewed;
(g) probationary periods of six months for classified ~~employees~~Employees appointed to regular positions from eligible lists. Such probationary periods may be extended to no more than eighteen months for Deputy Sheriffs or no more than twelve months for all other classified ~~employees~~Employees, upon approval of the Director of Human Resources. An appointing authority has the right to dismiss a person in the Classified Service during the probationary period if the appointing authority considers the ~~employee~~Employee unsatisfactory for or incompetent to fulfill the duties of the position. The appointing authority of an ~~employee~~Employee dismissed during probation shall give the dismissed ~~employee~~Employee a statement of the reasons for dismissal, and shall file such statement with the Director of Human Resources; the dismissed ~~employee~~Employee shall have no right of appeal to the Commission;
(h) procedures for the transfer of ~~employees~~Employees within the County service;
(i) performance appraisals;
(j) the disciplining of ~~employees~~Employees in the Classified Service for cause and their rights of appeal;
(k) the appeal processes to be conducted under the jurisdiction of the Commission; and

FULL TEXT OF MEASURE A (CONTINUED)

(l) the review of proposed Rules for the Classified Service and amendments to those Rules.

Section 911: Preferential Credits. In open examinations the Director of Human Resources shall, in addition to all other credits, give a credit of five percent of the maximum rating prescribed for the examination to successful examinees who have served during a war (as war is now defined in Section 205 of the State's Revenue and Taxation Code or as it may be defined if that Section is amended) in the military or naval service of the United States, including all uniformed auxiliaries authorized by Congress, and who have subsequently been separated, placed on inactive duty, or retired under honorable conditions without full pensions. However, the Director of Human Resources gives the credit to veterans only once, only upon their first employment or reemployment after disengagement from service, and only during the eight-year period following their disengagement.

Section 911.1: The surviving spouse of a person who died in the service specified above or who cannot engage in a remunerative occupation because of a disability connected with the service specified above receives a credit of five percent on every open examination taken and passed.

Section 911.2: A person who has been separated, placed on inactive duty, or retired under honorable conditions from the service specified above and who has a service- connected disability, as recognized under Federal law, receives a five percent credit that is separate and distinct from the one authorized by Section 911 on every open examination taken and passed.

Section 912: Citizenship Requirements for Employment. The Board may establish, by resolution or ordinance, whatever citizenship requirements are legal for employment in public service.

Section 913: Reimbursement for Travel. A person who is required to travel in the performance of official County duty shall receive, in addition to regular compensation, reimbursement for travel expenses.

Section 913.1: The Board shall establish, by ordinance, the types of expenditures which can be reimbursed and the manner and rates of reimbursement. The ordinance shall implement and conform to any applicable provisions contained in memorandums of agreement with recognized employee organizations.

Section 914: Regulation of Political Activities. Officers and ~~employees~~Employees shall not engage in political activities during hours when they have been directed to perform assigned duties. This section shall not prohibit elected officials or their staff from engaging in political activities not otherwise prohibited by State or federal law.

Section 915: Prohibition of Nepotism. No person related to an Officer or Department head by blood or marriage ~~to an officer or department head~~, up to the fourth degree of consanguinity, may be employed in the ~~department~~Department of that ~~officer~~Officer or ~~department~~Department head. This section shall not apply to anyone appointed prior to the operative date of this section.

Section 916: Independent Contractors. Nothing in this Article prevents the County from employing an independent contractor when the Board or ~~Purchasing Agent~~the Director of the Department of Purchasing and Contracting determines that services can be provided more economically and efficiently by an independent contractor than by persons employed in the Classified Service.

Section 917: Labor on Public Works. Labor on public works in this County is governed by ~~general law~~General Law.

ARTICLE X
GENERAL PROVISIONS

Section 1000: Conflict of Interest. Attorneys, agents, officers, majority stockholders, and employees of firms, associations and corporations doing business under franchises granted by the County or contracts made with the County; persons doing that business; and persons with a financial interest in those franchises, or contracts are any ineligible to hold County

office if the holding of such office would empower the incumbent to enter into or approve such franchise or contract.

Section 1000.1: Avoidance of Conflicts of Interest.

(a) Intent. State law allows members of the Board of Supervisors to accept gifts and campaign contributions from potential and existing contractors and their offices, owners, and lobbyists. Public disclosure of these gifts and campaign contributions is required, but there is no requirement in State law that disclosure be made immediately prior to the time the Board of Supervisors considers approval, amendment or extension of service contracts. This Charter section is intended to require public disclosure of gifts and campaign contributions to members of the Board of Supervisors by potential and existing contractors and their registered lobbyists prior to Board consideration of the service contracts. If the required disclosure is not complete and accurate, the contract will be voidable. This Charter section is intended to protect against actual and perceived conflicts of interests by requiring timely public disclosure of the gifts and campaign contributions from contractors and their registered lobbyists when service contracts are being considered by the Board. This section is also intended to allow contracting to be conducted outside of the political arena.

(b) Disclosure. Any person or entity whose service contract is to be considered by the Board of Supervisors for approval, amendment, or extension, and the registered lobbyists of such person or entity, must make a public disclosure of gifts and campaign contributions made to members of the Board of Supervisors prior to the Board's decision. Hereinafter, reference to "contractor" within this section shall mean any person or entity whose service contract is to be considered for approval, amendment, or extension by the Board of Supervisors, and reference to "registered lobbyist" shall mean any person who is registered as a lobbyist with the County of San Diego. At least four (4) calendar days before the day of the meeting of the Board of Supervisors at which the approval, amendment or extension of the service contract is to be considered by the Board, the contractors and their registered lobbyists shall disclose in writing the following:

(1) All gifts that are reportable pursuant to the provisions of the Political Reform Act of 1974, as amended, given by contractors and their registered lobbyists to any member of the Board of Supervisors or to the immediate family of such member during the year preceding the date of the disclosure.

(2) All federal, State and local campaign contributions made by the contractors and their registered lobbyists to any member of the Board of Supervisors or his or her controlled committees during the year preceding the date of the disclosure.

If there are no gifts or campaign contributions to disclose, that fact shall be disclosed in writing by the contractors or their registered lobbyists within the time limit set forth above.

(c) Disclosure Requirement and Definitions.

1. The contractor's disclosure shall include gifts and all campaign contribution from:

   (i) any natural person or legal entity constituting the contractor, and
   (ii) Any principal owner or principal officer of the contractor.

2. The registered lobbyist's disclosure shall include gifts and all campaign contributions from the registered lobbyist.

3. "Principal owner" of a limited partnership shall include all general partners but not the limited partners.

FULL TEXT OF MEASURE A (CONTINUED)

4. "Principal owner" of a corporation, trust or joint venture shall include all persons and entities who own directly, indirectly or beneficially a ten percent (10%) interest or greater.

5. "Principal officer" includes any member or a chairperson of a board of directors, president, any vice president, secretary, treasurer, chief financial officer, general manager, trustee and any person performing substantially the same functions associated with the above titles, regardless of their actual titles.

6. "principal officer" shall also include the person or persons employed by the contractor and in charge of contracting with the County on behalf of the contractor, including but not limited to, regional managers and regional division heads.

(d) Filing and Dissemination. The required written disclosure by the contractors and their registered lobbyists shall be filed with the Clerk of the Board of Supervisors on a form prescribed by the Clerk and shall be open to inspection by all members of the public. In addition, the Clerk of the Board shall make all disclosures available to the public on the County's internet site after they are filed with the Clerk and prior to the day on which the Board acts on the service contract. The County's cost of implementing the disclosure required by this section in respect to any specific contractor shall be paid by that contractor at the time of the required initial disclosure of the contractor or the contractor's registered lobbyist.

(e) Supplemental Disclosures. Gifts or campaign contributions from contractors or their registered lobbyists to members of the Board of Supervisors made subsequent to the required written disclosure, but prior to the Board's decision to approve, amend or extend the service contract, and any gift or campaign contribution inadvertently not included in the initial written disclosure, shall be disclosed in writing at the meeting of the Board of Supervisors to consider the contract and announced by the Clerk of the Board prior to the Board's decision to approve, amend, or extend the contract.

(f) Exclusion of Contracts with Governmental Entities. This section shall not apply to contracts between the County of San Diego and other government entities.

(g) Voidability of Contracts. If, subsequent to Board approval, amendment or extension of a service contract, the disclosure required by this Charter section is found by the Board of Supervisors to be substantially incomplete or inaccurate due to intentional misconduct or gross negligence of the contractor or the contractor's registered lobbyist, the contract may be voided at the discretion of the Board of Supervisors. All service contracts approved by the Board on or after January 1, 2001 shall include a provision stating that the contract is voidable as provided above. In addition, the contractor shall submit a written certification that the contractor and the contractor's registered lobbyist have complied with the disclosure requirements imposed by this Charter section.

(h) Delegation. In accordance with applicable law, and the provisions of this Charter, the Board of Supervisors may continue to delegate to the County's Director of the Department of Purchasing and Contracting or to other appropriate County Officers the authority to approve service contracts in order to permit the Director of the Department of Purchasing and Contracting and other appropriate County Officers to continue to approve service contracts outside the political arena.

(i) No additional disclosure. This Charter section sets forth the complete disclosure requirements to be applied specifically to the County's contracting process. No additional disclosure in the specific context of the County's contracting process shall be required, except as may be required by State legislation or a Charter amendment which is adopted subsequent to the effective date of this section.

(j) Construction. This section shall be interpreted and construed in accordance with the provisions and definitions contained in the California Political Reform Act of 1974, as amended, and the regulations of the Fair Political Practices Commission adopted pursuant thereto.

Section 1001: Prohibition of Bribes. A person who, directly or indirectly, offers, solicits, gives, or takes a bribe in connection with a County purchase is guilty of a misdemeanor and, if convicted, shall be punished by a fine not exceeding five hundred dollars and/or by imprisonment for a period not exceeding one year.

Section 1002: Violation of Charter. Unless otherwise specified in this Charter, a violation of a provision of this Charter constitutes misconduct in office and may be grounds for removal from office as provided by ~~general law~~General Law.

Section 1003: ~~Severance~~Severability Clause. If a provision of this Charter is held to be invalid or unconstitutional, the validity or constitutionality of the remaining portions of this Charter shall not be affected.

Section 1004: Operative Date. This addition of Sections 501.6, 501.7, 501.8 and 703.9; the repeal of Sections 701, 702, and 702.1; the repeal of Article IX; the addition of Article IX; and the amendment of Sections 501.1, 501.2, 1000 and 1002 shall be operative on July 1, 1981, if theretofore filed with the Secretary of State according to ~~general law~~General Law after ratification by the voters at the general election on November 4, 1980.

Section 1005: Operative Date. The amendment to Section 603.1, 603.2 and 603.4 shall be operative July 1, 1979, if theretofore filed with the Secretary of State according to ~~general law~~General Law after ratification by the voters at the General Election on November 7, 1978.

Section 1006: Operative Date. The amendment to the Charter of the County of San Diego approved by the voters at the General Election on November 6, 1984, shall become operative on February 6, 1985, and shall apply to all persons who are in the Executive Service on the date immediately preceding the operative date of these amendments and nothing in these amendments shall affect the continuity of employment of persons in the position held at that time.

Section 1007: Operative Date. The amendment to the Charter of the County of San Diego which includes the amendment of Section 600, the repeal of Sections 601 and 601.1, and the addition of Section 601 and of this Section, approved by the voters at the November 2, 1993, special election, shall become operative at noon on January 2, 1995, if theretofore filed with the Secretary of State according to ~~general law~~General Law after ratification by the voters at the November 2, 1993, special election.

Section 1008: Operative Date and Operative Effect: The amendment to the San Diego County Charter, which includes the addition of Section 1000.1, shall become operative on January 1, 2001 if approved by the voters on November 7, 2000. Further, this amendment to the San Diego County Charter, which adds Section 1000.1 to the Charter, is in conflict with another measure on the November 7, 2000 ballot entitled "The Clean Contracting Charter Amendment," which proposes to add Sections 502 through 502.6, inclusive, to the San Diego County Charter. Based upon the conflict between these two measures, if each measure is approved by a majority vote of those voting on each measure, then the measure with the highest affirmative vote shall prevail, and the measure with the lowest affirmative vote shall be deemed disapproved and shall have no force or effect.

Section 1009: Operative Date. The amendment to the Charter of the County of San Diego which includes the amendment of Sections 400.1, 401.3, 401.4, 603.1, 703, 703.6, and the addition of Sections 400.5, 800.1 and 800.2, approved by the voters at the November 6, 2018 general election, shall become operative upon acceptance and filing by the Secretary of State according to ~~general law~~General Law.